

		party's argument for him]; <i>Cahill v. San Diego Gas & Electric Co.</i> (2011) 194 Cal.App.4th 939, 956 [same]; <i>People v. Lee</i> (2008) 161 Cal.App.4th 124, 130 ["It is not the court's function to marshal evidence for the parties or to make tactical judgments about how the parties should present their arguments."].) Defendant shall give notice.
4	Davis vs. Snell & Wilmer, LLP 2025-01522338	Demurrer to Complaint <i>Vacated. See minute order dated 7/6/26 (ROA 43).</i>
5	Diane Gibbs vs. Smith 2025-01532452	Motion for Judgment on the Pleadings Defendants Greater Pacific Roofing ("GPR") and Kevin Crowley's motion for judgment on the pleadings is DENIED as to the second cause of action for negligence as alleged against GPR, and GRANTED in all other respects. Plaintiffs Randy Morton and Diane Gibbs are granted 10 days leave to file a first amended complaint. <u>Entire complaint as alleged against Crowley.</u> As alleged against Crowley, the complaint fails to allege any facts against him in his individual capacity that give rise to any individual liability. The only allegations involving Crowley involve his statements on behalf of GPR as its CEO. (See Compl. at att. A.) <u>First cause of action for "motor vehicle."</u> The complaint fails to state facts sufficient to constitute a cause of action for "motor vehicle" negligence/liability. The complaint does not allege any facts suggesting the defendants engaged in any conduct that might give rise to such liability. <u>Second cause of action for general negligence.</u> The complaint adequately alleges a claim for negligence against GPR. (See <i>Kesner v. Superior Court</i> (2016) 1 Cal.5th 1132, 1142 [elements]; Civ. Code, § 1714, subd. (a) [duty]; <i>J'Aire Corp. v. Gregory</i> (1979) 24 Cal.3d 799, 806 [under section 1714, damages are recoverable where they result from an injury to one's person or property caused by another's negligence]; <i>Esparza v. Kaweah Delta Dist. Hospital</i> (2016) 3 Cal.App.5th 547, 555 [the "use of a Judicial Council form complaint is not a determinative factor in deciding whether or not to sustain a demurrer"; instead, the "court must examine the particular allegations ... and determine whether